IN THE PESHAWAR HIGH COURT, PESHAWAR
Present:
* Hon'ble Mr. Justice Jamal Khan Mandokhail
* Hon'ble Mr. Justice Hasan Azhar Rizvi

Crl. Appeal No. 656/2021
Citation: PLD 2021 Lah 922
Matter ID: MAT-COMM-2021-085

BETWEEN:
Engro Fertilizers Limited ... Appellant / Petitioner
VERSUS
Zubair Ahmed & others ... Respondent

LEGAL TOPIC: Commercial - Arbitration Award Challenge
STATUTES CITED: Arbitration Act 1940, S. 30, S. 20, Contract Act 1872, S. 28

JUDGMENT
1. This judgment disposes of Crl. Appeal No. 656/2021, directed against the final judgment rend ered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attor ney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Con stitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied i n Arbitration Act 1940, S. 30 were disregarded, thereby causing grave miscarriage of justice. O n the contrary, learned counsel for the respondent defended the impugned judgment, asserting th at full opportunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on rec ord clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
In view of the clear mandate of law laid down under Arbitration Act 1940, S. 30 and guaranteed fundamental rights, this petition is allowed. The impugned judgment is set aside and matter is remanded for decision afresh on merits.

Decided on: 8 October 2021.